

Afzal Ahmad v. State of U.P. Thru. Secy. Energy, Lucknow and Another

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 16 April 2026 · Writ-C No. 3653 of 2026 · **Writ allowed. Rejection of connection set aside; licensee directed to grant a fresh domestic connection on a complete application with Clause 4.4 indemnity compliance, within one week.**

HEADNOTE

Clause 4.4, Electricity Supply Code, 2005 — occupant connection on indemnity bond. A pending property dispute is not a ground to refuse a domestic connection where the applicant will furnish the Clause 4.4 indemnity. Rejection of a 2 kV domestic application set aside; Executive Engineer directed to grant a fresh connection within one week of a complete application with Clause 4.4 compliance.

FACTUAL SUMMARY

The petitioner, a permanent resident of the first floor of House No. 430/47, Mohalla Moazzam Nagar, Lucknow, applied on 24 January 2026 for a 2 kV domestic connection. The licensee rejected the application on 3 February 2026 because a dispute was pending over the property. Counsel for the respondents told the Court that if the petitioner gave an indemnity bond under Clause 4.4 of the Electricity Supply Code, 2005, they would have no objection to granting a new connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

On the licensee's statement that an indemnity bond under Clause 4.4 of the Electricity Supply Code, 2005 would remove any objection to a new supply, a pending property dispute is not a ground to refuse a domestic connection. The rejection dated 3 February 2026 is set aside and the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, is directed to grant a fresh connection within one week of a complete application with Clause 4.4 compliance. ¶ 4-6

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond Clause 4.4, Electricity Supply Code, 2005 — occupant connection on indemnity bond. A pending property dispute is not a ground to refuse a domestic connection where the applicant will furnish the Clause 4.4 indemnity.. ¶ 4-6